

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----
EDWIN TORO,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS MATTHEW GRIEVE
(SHIELD 20150), MICHAEL MONTALVO
(SHIELD 17893), KELLY WAUGH (SHIELD
18363), AND SERGEANT FREDDY LOPEZ,Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Albany, New York
September 1, 2022**SUMMONS**

Index No.: _____

Plaintiff designates
New York County
as the place of trialThe basis of venue is based on
CPLR § 504(3)/s/ Jessica GormanJessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
EDWIN TORO
26 Broadway, 3rd Floor
New York, New York 10004
P: (212) 500-3273
F: (855) 696-6848
E: jgorman@lebedinkofmanlaw.com

Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

NEW YORK CITY POLICE OFFICER MATTHEW GRIEVE (SHIELD 20150), 28TH
PRECINCT, 2271-89 8TH AVENUE, NEW YORK, NY 10027-5319

NEW YORK CITY POLICE OFFICER MICHAEL MONTALVO (SHIELD 17893), 28TH
PRECINCT, 2271-89 8TH AVENUE, NEW YORK, NY 10027-5319

NEW YORK CITY POLICE OFFICER KELLY WAUGH (SHIELD 18363), 28TH PRECINCT,
2271-89 8TH AVENUE, NEW YORK, NY 10027-5319

NEW YORK CITY POLICE SERGEANT FREDDY LOPEZ, 28TH PRECINCT, 2271-89 8TH
AVENUE, NEW YORK, NY 10027-5319

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

EDWIN TORO,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE OFFICERS MATTHEW GRIEVE
(SHIELD 20150), MICHAEL MONTALVO
(SHIELD 17893), KELLY WAUGH (SHIELD
18363), AND SERGEANT FREDDY LOPEZ,

Defendants.

VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

Index No.: _____

EDWIN TORO, by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, AND NEW YORK CITY POLICE OFFICERS MATTHEW GRIEVE (SHIELD 20150), MICHAEL MONTALVO (SHIELD 17893), KELLY WAUGH (SHIELD 18363), AND SERGEANT FREDDY LOPEZ, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of his rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the United States Constitution.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

PARTIES

3. At all relevant times, Plaintiff resided in Kings County, City and State of New York. He currently resides in Kings County.

4. At all relevant times, Defendant CITY OF NEW YORK was a municipal corporation incorporated and existing under the laws of the State of New York, which operated, controlled, and managed Defendant New York City Police Department.

5. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT was and is an agency of Defendant City, and directly supervised the individually named Defendants.

6. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER MATTHEW GRIEVE (SHIELD 20150) was a police officer with the New York City Police Department, believed to be working out of the 28th Precinct. This Defendant is sued in his individual and official capacities.

7. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER MICHAEL MONTALVO (SHIELD 17893) was a police officer with the New York City Police Department, believed to be working out of the 28th Precinct. This Defendant is sued in his individual and official capacities.

8. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER KELLY WAUGH (SHIELD 18363) was a police officer with the New York City Police Department, believed to be working out of the 28th Precinct. This Defendant is sued in her individual and official capacities.

9. Upon information and belief, at all relevant times, Defendant NEW YORK CITY POLICE OFFICER SERGEANT FREDDY LOPEZ was a police officer with the New York City

Police Department, believed to be working out of the 28th Precinct. This Defendant is sued in his individual and official capacities.

10. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

11. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

12. On the evening of June 16, 2019, the Plaintiff, Edwin Toro, was on his way home after visiting his brother in Manhattan. Before getting onto the subway, he stopped at a store on 111th Street near St. Nicholas Avenue.

13. As he was leaving the store, a group of people were coming in. Mr. Toro accidentally brushed shoulders with one of them.

14. As he walked out of the store, Mr. Toro noticed more people outside. The person he brushed shoulders with came out, apparently to make an issue of Mr. Toro accidentally brushing his shoulder. They exchanged words and Mr. Toro walked away to return home.

15. The group followed him and were yelling at him but Mr. Toro continued walking.

16. As he was turning the corner, a person stopped him, then he was attacked. He was hit, fell to the ground, his glasses fell off, and he was stomped and beat on. He managed to get up and tried to run away from the people attacking him.

17. As he ran, he saw a few police officers, believed to be Defendants Matthew Grieve, Michael Montalvo, and Kelly Waugh. Mr. Toro was relieved to see them there, thinking he would

be safe from the people attacking him. He ran straight to these officers and told them he was being attacked. But instead of listening or trying to help him, Defendants Grieve and Montalvo put him into a chokehold, punched him in the ribs, slammed him on the ground, handcuffed him, and threw him into the back of the police car.

18. Upon information and belief, as they did this, Defendant Waugh kept saying that Mr. Toro was the victim, not the aggressor, but Defendants Grieve and Montalvo ignored her and beat and arrested Mr. Toro anyway.

19. Upon information and belief, Defendants Grieve, Montalvo, and Waugh also searched Mr. Toro even though he committed no crime and there was no apparent lawful basis to search him.

20. Mr. Toro was brought to the 28th precinct for processing, then brought to the hospital for medical attention. He had a boot print on his face, dirt and blood in his eyes, bruises and abrasions on his eye and forehead, injuries to the palms of his hands, and a suspected concussion.

21. Mr. Toro was ultimately brought to Central Booking, then arraigned and sent to Riker's. Even though he was the victim, and tried to get away from the group of people who jumped him, one of the people in the group that attacked Mr. Toro claimed that he placed his hand on her clothing over her genitals. He was charged with the A misdemeanors of forcible touching, criminal possession of a controlled substance 7th degree, the B misdemeanor of sex abuse in the 3rd degree, and unlawful possession of marijuana, a violation.

22. The supervising officer, Defendant Sergeant Freddy Lopez, signed off on and approved the charges.

23. Because Mr. Toro was on parole at the time, parole also held him based on these

charges.

24. Upon information and belief, on about November 5, 2019, the parole charges were dropped and Mr. Toro was released.

25. He had spent 142 days, about four and a half months, incarcerated.

26. The charges against him were dismissed and terminated in his favor on January 8, 2020.

27. As a result of the assaults, Mr. Toro suffered from recurrent headaches and back pain.

28. In addition to suffering the indignity and loss of liberty for falsified charges while he was the actual victim, Mr. Toro's life was predictably sent into a tail spin as a result.

29. At the time of this arrest, he had been living in a re-entry home after being released from prison a couple of years before. He was doing well, was to get an apartment soon, and had a job lined up.

30. As a result of this false arrest and prosecution though, he lost his home, did not get the apartment, did not get the job, and lost all of his personal belongings, including his clothing, money, identification, and photographs and sentimental things.

31. This arrest and prosecution set Mr. Toro back not only financially and in terms of re-entering society, but also mentally and emotionally.

32. His physical injuries and headaches eventually healed, but he struggled emotionally with what happened to him and sought counseling to help him deal with it once he was released.

33. This is not the first time police officers in the 28th precinct have been charged with violating the civil rights of citizens. There is a long documented history of such charges made against officers in this precinct.

34. Since 2001, there have been hundreds of complaints and allegations, with at least 109 of them substantiated against some 49 different officers, including detectives, sergeants, and lieutenants. Several officers had multiple substantiated complaints.

35. At least 64 of these substantiated charges were in the last decade alone.

36. The substantiated charges include about 19 for excessive force, as well as violations for unlawful chokehold, unlawful stops, frisks, searches of people, cars, and premises, threats of force, threats of arrest, and retaliatory arrests and summons, among other violations.

37. Included in the 49 different officers with substantiated violations are two detectives, three sergeants, and three lieutenants.

38. Additionally, a host of successful lawsuits have been brought in Supreme and federal courts against at least 13 different officers in the 28th precinct for a range of civil rights violations.

39. The vast majority of these lawsuits have been brought in the last decade or so.

CAUSES OF ACTION

FIRST CAUSE OF ACTION AGAINST DEFENDANTS GRIEVE AND MONTALVO PURSUANT TO 42 U.S.C. § 1983 EXCESSIVE FORCE

40. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

41. As set forth above, Defendants Grieve and Montalvo choked and assaulted Mr. Toro for no apparent reason whatsoever, and even though he was the victim of an assault and ran to them for help.

42. This violated Mr. Toro's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS GRIEVE, MONTALVO, AND
WAUGH
PURSUANT TO 42 U.S.C. § 1983
ILLEGAL SEARCH

43. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

44. As set forth above, upon information and belief, these Defendants searched Mr. Toro even though there was no apparent legal basis to do so.

45. This violated Mr. Toro's right to be free from illegal searches, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS GRIEVE, MONTALVO, WAUGH,
AND LOPEZ
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST

46. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

47. As set forth above, these Defendants arrested Mr. Toro, then brought false charges against him without probable cause and for crimes he did not commit.

48. This violated Mr. Toro's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS GRIEVE, MONTALVO,
WAUGH, AND LOPEZ
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

49. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

50. As set forth above, these Defendants knowingly and intentionally caused Mr. Toro to be prosecuted without probable cause and without legal justification.

51. Mr. Toro spent months incarcerated while he was prosecuted on false charges.

52. This violated Mr. Toro's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS GRIEVE, MONTALVO, WAUGH,
AND LOPEZ
PURSUANT TO 42 U.S.C. § 1983
FALSE IMPRISONMENT

53. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

54. As set forth above, these Defendants knowingly and intentionally falsely arrested and charged Mr. Toro, then caused him to be prosecuted without probable cause, without legal justification, and on false charges. He was incarcerated for months as a result.

55. This violated Mr. Toro's constitutional rights to be free from false imprisonment, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

SIXTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK AND NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID**

**VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

56. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

57. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the police department on a variety of subjects including detentions and arrests, searches and seizures, prosecution, and other areas of importance to the Constitutional rights of citizens.

58. In the alternative, and upon information and belief, the City and Police Department have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens by failing or refusing to enforce them.

59. Upon information and belief, the City and Police Department have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens.

60. As set forth above, Defendants Grieve, Montalvo, and Waugh knowingly and intentionally arrested and charged Mr. Toro, then caused him to be prosecuted and imprisoned for months without probable cause, without legal justification, and on false charges. Defendant Sergeant Lopez approved of the charges and prosecution.

61. Upon information and belief, these Defendants took these actions with the knowledge and implicit approval of their supervisors.

62. As detailed above, incidents like these are part of a larger pattern and practice in the 28th precinct, and in the NYPD as a whole. This precinct has a long history of numerous police officers, including lieutenants, detectives, and sergeants, routinely violating the civil rights of

citizens with impunity. Not only have supervisors in the precinct participated in these violations, but upon information and belief, higher-ups in the NYPD and in the City have turned a blind eye to these violations, thereby allowing them to continue.

1. In light of the numerous substantiated charges and numerous successful lawsuits brought against multiple officers in the 28th precinct, higher-ups *had* to know what was happening. Higher ups either failed to more closely examine the Defendant officers' actions with regard to Mr. Toro or they turned a blind eye to their violations. They did this despite the fact that serious questions should have been raised.

2. Yet, upon information and belief, the Defendant City of New York and the New York City Police Department failed to more closely supervise or monitor these officers or to provide extra training or take any other remedial or preventative steps to ensure they acted in compliance with the law.

3. The violations against Mr. Toro occurred in accordance with these very practices policies, and customs, through the City and the Police Department's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individually named Defendants here.

4. These actions and inactions violated Mr. Toro's constitutional rights, and as a direct and proximate result of these unconstitutional acts, he has been irreparably injured.

DEMAND FOR JURY TRIAL

5. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
September 1, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
EDWIN TORO
26 Broadway, 3rd Floor
New York, New York 10004
T: (212) 500-3273
F: (855) 696-6848
E: jgorman@lebedinkofmanlaw.com

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are communications with others known to me, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Albany, New York
September 1, 2022

/s/ *Jessica Gorman*
Jessica Gorman, Esq.